

CITATION: Goralczyk v. The Beer Store, 2016 ONSC 2265
COURT FILE NO.: CV-15-543756
DATE: 20160404

SUPERIOR COURT OF JUSTICE - ONTARIO

B E T W E E N:

Anna-Marie Goralczyk,

Plaintiff

-and-

The Beer Store, United Food and Commercial Workers (UFCW) local 12R24 union; CFRA Ontario; Canada's National Brewers; The City of Toronto (Office of the Mayor); Granite Claims Solutions Toronto (Downtown), ClaimsPro; Premier of Ontario; the Attorney General of Ontario; Ontario Association of Chiefs of Police Corporate Office, Mary Jocelyn Aviado, Danilo Aviado, Elizabeth Bowels [sic] Lyon, Pope Bergoglio, Jim Makris, William Blair, Children's Aid Society aka Valoris, Annie Ivy-Lea O'Neill aka. Annie Ivy-Lee Aviado; Terry-Lynn Benoit, Helen Fournier; Alaine Hupe Huppe; Children's Aid Society of Toronto; Gordon Pon; MaryAnn Bechthold, Martine Edwards; Ms. Gallant; Gary O'Neill; Lillian O'Neill, Christine Goralczyk Bennett, Catherine Goralczyk, Adesso Fenton, James Joseph Goralczyk, Rick Siwek; Jaclyn Mitruk Siwek; Allison Siwek White, Jillian Siwek Jackson; Royal LePage Real Estate; Allan Jones; Kathy Gross, Allan Organization; Joe Mizzi; Fiona Lou Mizzi; Enzo Mizzi Lydia Lazaro Mizzi; Carman Mizzi, Phil Mizzi; The Mizzi Organization aka Alonzi; North 44 Management; Sheldrake Management, Sylvia Sammut Kanary, Tammy Sandra Conway Rose, George Ohrling; Kathleen Thornton, Judge Helen Pierce; Judge Jean L. MacFarland, Judge Herman Jan Wilton Siegel, Judge Goodman, Janet McDaniel, Deborah Guild, St. Michael's Hospital, Dr. Melissa Chacko, Dr. Quack, Paul Martin, Stephen Harper, Justin Trudeau, Central Neighborhood House, Christian Resource Center aka 40 Oak Center, Good Shepherd Ministries, 111 Wellesley St. Public Service Office, Toronto Public Library, Bonnie Gryce, Blair Leslie Botsford, Angela O'Neill, Jody Wilson, Jonathan Ptak, Kirk Baert, Mike Bryant, Chris Bentley, Madeleine Meilleur, Tina Earl, Karen Shaw, Anthea Cheung, Victorias Yankou, Stephen Tsoi, Terri-Lynn Benoit, Patricia Kelly, George Bell, David Lynch, Elizabeth Forestell, Gita Dessner, Anica Raskovic, Claire Barcik, Kathleen Adams Warren Kaus, Irene Ryner, Pam Gawn, Tran Vu, Raymond Mallozzi, Violet Halladay, Christine, Swearing, Norm Kelly, Rob Ford, David Miller, John Tory, Judge Gloria Klowak, Judge Robert Armstrong, Judge John Hamilton, Judge Richard Schneider, Judge Bruno Cavio, Judge John Ritchie, Jeff Newton, Mike Tallis, Rob Mather, Jamie Rilett, Ted Moroz, Andrea Randolph, Doug Moffet et al. Deborah Goralczyk Walker Smith and Lawrence Goralczyk

Defendants

BEFORE: F.L. Myers J.

HEARD: April 4, 2016

[1] By Endorsement dated February 8, 2016, reported at [2016 ONSC 993 \(CanLII\)](#), I directed the registrar to send notice to the plaintiff in Form 2.1A indicating that the court was considering dismissing her action for being frivolous, vexatious, or an abuse of process on its face. The plaintiff sought additional time and leave to file submissions of more than ten pages. By endorsement dated March 9, 2016, reported at 2016 ONSC 1699, I granted the former request but not the latter.

[2] Despite being limited to ten pages of submissions, the plaintiff has delivered many lengthy documents to the court. I am guided by the decision of the Court of Appeal in *Scaduto v. Law Society of Upper Canada*, 2015 ONCA 733, where at para. 12 the Court wrote:

Rule 2.1 is designed to permit the court to dismiss frivolous or vexatious proceedings in a summary manner. Resort to evidence defeats the purpose of the rule and leads to the danger that the r. 2.1 process will itself become “a vehicle for a party who might be inclined to inflict the harms of frivolous proceedings on the opposing parties and the civil justice system”

[3] Accordingly, I have reviewed the plaintiff’s material looking for argument concerning whether the statement of claim is frivolous, vexatious, or an abuse of process on its face. I have avoided digging into any form of evidentiary inquiry at this stage.

[4] As I noted in my first endorsement, the statement of claim concerns a slip and fall accident at a Beer Store in January, 2014. But it also discusses the plaintiff’s claim that she is being stalked by criminal organizations. She pleads that her daughter was wrongly taken from her by the legal system and has been repeatedly raped by pedophiles since 2004. She wishes to use these proceedings to seek redress against all whom she blames including, among many others, the Prime Minister of Canada, a number of former Prime Ministers, a number of judges and former judges, the Mayor of Toronto, former Mayors, and the Queen Mother.

[5] The plaintiff has purported to deliver a Notice of Constitutional Question to signal her intention to challenge the constitutionality of Rule 2.1. Be that as it may, until that proceeding is brought and resolved, the presumption of constitutionality requires that I must proceed under the law as it currently stands.

[6] The plaintiff alleges that I am in a conflict of interest because I have been picked by the Attorney-General to hear this case. She alleges that I am helping the Attorney-General to carry out a criminal design to cover up our complicity in the raping of children. The Ontario Attorney-General has no say in the appointment or the assignment of judges in this Court. I was assigned to hear Rule 2.1 matters in Toronto by the delegate of the Regional Senior Justice in June 2014. I reject and deny the plaintiff’s allegations concerning my conduct. They are a figment of the plaintiff’s imagination. Apart from wild accusations, there is no reasonable or objective basis to suggest that I have had any involvement in any matter concerning the plaintiff or her child. There is no basis therefore to consider that the court has a conflict of interest.

[7] It is apparent from the plaintiff's material that she is extremely upset. She is greatly affected by conspiracies. She readily characterizes others as murderers, pedophiles, and rapists. She makes threats to cause physical harm to others that are neither appropriate or lawful communication.

[8] It is apparent from a review of the statement of claim and the plaintiff's submissions that the lawsuit cannot succeed and is therefore frivolous. Moreover, the plaintiff's threats and allegations leave no doubt that the attenuated process of Rule 2.1 is appropriate. *Scaduto v. Law Society of Upper Canada*, 2015 ONCA 733.

[9] Therefore, this action is dismissed without costs against all defendants other than the Beer Store and the City of Toronto. The statement of claim is struck out. The plaintiff may deliver a fresh as amended statement of claim limited to claiming damages from the Beer Store and the City of Toronto for the slip and fall accident in January, 2014. If a fresh as amended statement of claim is not delivered within 30 days, the Beer Store and the City of Toronto may move to dismiss the action with costs. Nothing herein limits the rights of the Beer Store and the City of Toronto to bring any motions as they may be advised if a fresh as amended statement of claim is filed.

[10] The court dispenses with any requirement for the plaintiff to approve the form or content of the formal order implementing the terms of this order.

[11] In addition to the service by mail required by Rule 2.1.01(4), the registrar is to send a copy of this endorsement to the plaintiff and counsel for the defendants by email if it has their email addresses.

F.L. Myers J.

Date: April 4, 2016